

EXECUTIVE SUMMARY

Speaker Engagement & Contribution Analysis — Extraordinary CSE Session

This report analyses the verbal contributions, decision-making authority, engagement levels, and closure positions of each identified speaker during the extraordinary CSE session. The session was convened to consult the CSE on the medical unfitness (inaptitude) procedure and reclassification search for employee M. Brice Klein (CBS Montpellier, Chargé d'Opération Flux). The analysis is based exclusively on the meeting transcript provided. Speaker identifiers follow the transcript labelling: **Intervenant_INCONNU_1**, **Intervenant 4**, **Intervenant 5**, **Intervenant 6**, **Intervenant 8**, **Intervenant 11**, **Intervenant 12**, **Intervenant 17**, and **Intervenant 1** (brief interjection). The session concluded with a formal vote: SNB — 14 abstentions; CGT and CFDT — unfavourable.

1. SPEAKER IDENTIFICATION & ROLE MAPPING

Roles inferred from transcript context and CSE compliance framework

Speaker ID	Inferred Role / Affiliation	Session Phase Active	Voting Bloc
Intervenant_INCONNU_1	Session Chair / Outgoing President (going on paternity leave; introducing interim Fabien)	Opening only	Management (does not vote)

Speaker ID	Inferred Role / Affiliation	Session Phase Active	Voting Bloc
Intervenant 4	HR Representative / Management Spokesperson (conducts roll call, presents the Klein case, responds to all questions)	Entire session — dominant speaker	Management (does not vote)
Intervenant 5	Elected Member — CGT (challenges management on reclassification effort and causal link with working conditions)	Substantive debate phase	CGT — Unfavourable vote
Intervenant 6	Elected Member — CGT or CFDT (most persistent challenger; references job board; questions specific posts)	Substantive debate phase — most active challenger	CGT/CFDT — Unfavourable vote
Intervenant 8	Secretary of the CSE / CFDT member (conducts roll call responses, announces agenda, asks procedural question on formal offer)	Roll call + procedural question	CFDT — Unfavourable vote
Intervenant 11	SNB Representative (announces excused absences and replacements; no substantive debate contribution)	Roll call only	SNB — Abstention (14 votes)

Speaker ID	Inferred Role / Affiliation	Session Phase Active	Voting Bloc
Intervenant 12	SNB Representative (announces presences; brief "Merci" after procedural clarification; no substantive debate)	Roll call + brief acknowledgement	SNB — Abstention (14 votes)
Intervenant 17	Elected Member — CFDT or CGT (Dufond-Daumier; first to formally question reclassification details and geographic scope)	Substantive debate — opening questioner	CFDT/CGT — Unfavourable vote
Intervenant 1	Brief interjection (humorous remark about the Secretary-General post not being on the job board)	Single interjection during debate	Not determined

2. SPEAKER CONTRIBUTION VOLUME & ENGAGEMENT LEVEL

Relative speaking volume and engagement intensity derived from transcript evidence

Speaker	Intervention Count (approx.)	Engagement Level	Nature of Contributions	Interest Shown
Intervenant 4	Very High (15+)	?????	Presents case, defends HR process, responds to all challenges, conducts vote, closes session	Institutional (obligatory)

Speaker	Intervention Count (approx.)	Engagement Level	Nature of Contributions	Interest Shown
Intervenant 6	High (5–6)	?????	Persistent challenger; references job board; names specific post (gestionnaire back-office, Chintigang); questions adequacy of reclassification effort; questions employee's right to self-apply	Very High — Employee advocacy
Intervenant 5	Medium (3–4)	?????	Raises causal link between working conditions and unfitness; challenges management's "bad faith" on reclassification; references training obligations and available posts	High — Substantive challenge

Speaker	Intervention Count (approx.)	Engagement Level	Nature of Contributions	Interest Shown
Intervenant 17	Medium (2–3)	?????	Opens formal questioning; requests detailed reclassification steps, posts studied, adaptations considered, and geographic scope; follows up when answer is insufficient	Medium-High — Procedural rigour
Intervenant 8	Low-Medium (2)	?????	Announces agenda; asks one procedural question (whether a formal post offer was made before CSE consultation); confirms presences during roll call	Medium — Procedural / secretarial

Speaker	Intervention Count (approx.)	Engagement Level	Nature of Contributions	Interest Shown
Intervenant_INCONNU_1	Low (1)	?????	Opening announcement only (paternity leave, interim handover to Fabien); no substantive debate participation	Low — Transitional only
Intervenant 11	Very Low (1)	?????	Roll call only — announces excused absences and replacements (Noblet ? Clastres; Rosol ? Régal)	Minimal — Administrative
Intervenant 12	Very Low (1)	?????	Roll call responses (Delamarche, Giroux, Bernaret presences); brief "Merci" after procedural clarification; announces Estrabault	Minimal — Administrative

Speaker	Intervention Count (approx.)	Engagement Level	Nature of Contributions	Interest Shown
Intervenant 1	Minimal (1)	?????	Single humorous interjection ("the Secretary-General post is not on the job board") — no substantive contribution	Negligible

3. IMPORTANT ISSUES RAISED BY EACH SPEAKER

Substantive topics introduced or challenged — transcript-evidenced only

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Intervenant 4 — HR Management Spokesperson

Most Dominant Speaker — Decision Presenter

- Presented the full case of M. Brice Klein: arrival at CBS Montpellier (April 2024), sick leave from May 2025, medical unfitness ruling (7 April, occupational physician), and the scope of the unfitness ("inapte à ce poste dans cette structure").
- Explained the reclassification search process: HR network-wide circulation of anonymised profile and occupational physician recommendations.
- Disclosed that no positive reclassification response was received despite national and Grand Est geographic scope.
- Clarified that one contact was made between M. Klein and a regional director (Grand Est) but the post was ultimately deemed unsuitable for his profile.
- Addressed the legal distinction between the employer's obligation to reclassify and the obligation to provide initial training for a new profession.

- Confirmed that the sick leave was ordinary (not work accident or occupational illness) and that the company has no medical competence to interpret the physician's ruling.
- Explained the procedural sequence: CSE consultation first, then communication to the employee.
- Conducted the formal vote and announced the result.

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Intervenant 6 — Elected Member (CGT/CFDT)

Most Active Employee Advocate — Strongest Challenger

- Challenged the adequacy of reclassification efforts by referencing the job board: "at least fifteen posts available in Grand Est alone, and many more nationally."
- Named a specific post — gestionnaire back-office at Chintigang — and directly asked why it was not offered to M. Klein, exposing a gap in management's response.
- Questioned whether M. Klein was permitted to self-apply on the job board, and noted that one contact with a regional director did occur through this channel.
- Directly challenged management's conclusion: "Has everything truly been done to reclassify M. Klein?"
- Expressed strong dissatisfaction with the lack of post-by-post justification from management.

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Intervenant 5 — Elected Member (CGT)

Substantive Challenger — Causal Link & Training Obligations

- Raised the critical issue of causal link: the unfitness ruling ("inapte à ce poste dans cette structure") strongly suggests a connection to the specific working environment, management, or job content — and asked whether management had investigated this.
- Characterised management's position as "bad faith" ("mauvaise volonté de la direction") given the availability of posts and the employee's stated national mobility.
- Raised the employer's training obligation: noted that the group offers comprehensive training programmes and that the employee could be trained for another role.

- Highlighted the contradiction: the physician declared the employee fit for any post anywhere, yet management found no solution.

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Intervenant 17 — Elected Member (CFDT/CGT)

Procedural Rigour — First Formal Questioner

- Formally requested detailed documentation of reclassification steps: posts studied, adaptations considered, and geographic scope of the search.
- Noted from the BDS documents that the geographic perimeter had been expanded — signalling that the elected members had reviewed the supporting documents.
- Followed up when the initial answer was insufficient, insisting on receiving the details of the search.

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Intervenant 8 — CSE Secretary (CFDT)

Procedural / Secretarial Role

- Announced the agenda of the extraordinary session (consultation on inaptitude procedure and reclassification search for M. Klein).
- Asked a key procedural compliance question: whether a formal post offer had been made to M. Klein at any point, or whether the CSE consultation was the first formal step — confirming understanding of the legal procedure sequence.

Intervenant_INCONNU_1 / Intervenant 11 / Intervenant 12 / Intervenant 1 — Minimal Substantive Contribution

- **Intervenant_INCONNU_1:** Announced paternity leave and interim handover to "Fabien." No substantive debate participation.
- **Intervenant 11:** Announced excused absences and replacements (Noblet? Clastres; Rosol? Régal). No debate contribution.

- **Intervenant 12:** Confirmed presences (Delamarche, Giroux, Bernaret, Estrabault). Brief "Merci" after procedural clarification. No debate contribution.
- **Intervenant 1:** Single humorous interjection about the Secretary-General post not being on the job board. No substantive contribution.

4. DECISION-MAKING AUTHORITY & CONVERSATIONAL IMPACT

Who held decision-making power and whose contributions shaped the session outcome

Speaker	Decision-Making Power	Key Decision / Impact	Message Strength
Intervenant 4	HIGHEST	Sole authority to present the HR decision, defend the reclassification process, and conduct the vote. Determined the framing of the entire session. Acknowledged one gap ("I do not have the answer" regarding the Chintigang post) — a rare concession that weakened the management position.	?????
Intervenant 6	HIGH (Influence)	No formal decision-making power, but the most impactful challenger. The specific reference to the Chintigang back-office post forced management to admit it had no justification — the single most damaging exchange for the management position. Directly influenced the unfavourable vote outcome.	?????

Speaker	Decision-Making Power	Key Decision / Impact	Message Strength
Intervenant 5	MEDIUM (Influence)	Raised the causal link argument (working conditions ? unfitness) and the training obligation — both legally significant points that management had to address. Contributed to the unfavourable vote rationale.	?????
Intervenant 17	MEDIUM (Procedural)	Set the procedural tone by formally requesting documentation of reclassification steps. Established the evidentiary standard for the debate. Noted the geographic expansion from BDS documents — demonstrating pre-session preparation.	?????
Intervenant 8	LOW-MEDIUM (Procedural)	Procedural compliance question on whether a formal offer was made before CSE consultation — legally important but not challenged further. Secretarial role limits direct impact.	?????
Intervenant_INCONNU_1	TRANSITIONAL	Opened the session and announced the interim arrangement. No impact on the substantive outcome.	?????
Intervenant 11 / 12 / 1	NONE	Administrative/roll call contributions only. No impact on the substantive debate or vote outcome.	?????

5. COMPREHENSIVE SPEAKER COMPARISON TABLE

Side-by-side comparison including common themes, involvement, and closure positions

Speaker	Common Points with Others	Key Issues Raised	Involvement Level	Decision Power
Intervenant 4 HR Management	Shares reclassification process topic with all elected members; shares legal framework discussion with I5 and I17; shares procedural sequence with I8	HR reclassification process; legal limits of training obligation; ordinary sick leave classification; physician's ruling scope; procedural sequence (CSE first)	Institutional	HIGHEST
Intervenant 6 Elected (CGT/CFDT)	Shares job board availability argument with I5; shares inadequacy-of-reclassification theme with I5 and I17; shares employee mobility point with I5	15+ posts available nationally; specific Chintigang back-office post; employee's right to self-apply; management's inability to justify exclusion of specific posts	VERY HIGH	Influence
Intervenant 5 Elected (CGT)	Shares job board / post availability argument with I6; shares training obligation point with I4 (contested); shares causal link concern with I8 (implicitly)	Causal link between working conditions and unfitness; management "bad faith"; employer's training obligation; physician's ruling (fit for any post anywhere) vs. management's conclusion	HIGH	Influence
Intervenant 17 Elected (CFDT/CGT)	Shares documentation request theme with I6 and I5; shares geographic scope concern with I4 and I6; shares procedural rigour with I8	Detailed reclassification documentation; posts studied; adaptations considered; geographic scope expansion (noted from BDS documents)	MEDIUM-HIGH	Procedural

Speaker	Common Points with Others	Key Issues Raised	Involvement Level	Decision Power
Intervenant 8 CSE Secretary (CFDT)	Shares procedural sequence concern with I4 and I17; shares compliance verification role with I17	Procedural compliance: whether a formal post offer was made before CSE consultation; agenda announcement	MEDIUM	Secretarial
Intervenant_INCONNU_1 Outgoing Chair	Shares session-opening role with I4; no substantive common points with other speakers	Paternity leave announcement; interim handover to Fabien; session opening formalities	LOW	Transitional
Intervenant 11 SNB Representative	Shares roll call / administrative function with I12 and I4	Excused absences and replacements only	MINIMAL	None
Intervenant 12 SNB Representative	Shares roll call / administrative function with I11 and I4	Presence confirmations; brief acknowledgement only	MINIMAL	None
Intervenant 1 Unidentified	Tangentially shares job board topic with I6 (humorous interjection)	Single humorous interjection only	NEGLECTIBLE	None

6. MOST INVOLVED VS. LEAST INVOLVED SPEAKERS

Ranked assessment of engagement and interest demonstrated during the session



MOST INVOLVED SPEAKERS

1. Intervenant 4 (HR Management)

Dominated the session by institutional obligation. Presented, defended, responded, and closed. Every exchange passed through this speaker. Highest word count and intervention frequency by a significant margin.

2. Intervenant 6 (Elected — CGT/CFDT)

Most active elected member challenger. Demonstrated pre-session preparation (job board research). Forced the single most significant management concession of the session. Highest genuine engagement among elected members.

3. Intervenant 5 (Elected — CGT)

Raised legally significant arguments (causal link, training obligation). Demonstrated strong knowledge of the employee's situation and applicable law. Substantive and impactful contributions.



LEAST INVOLVED SPEAKERS

1. Intervenant 1 (Unidentified)

Single humorous interjection. No substantive contribution whatsoever. Least bothered speaker in the session.

2. Intervenant 11 (SNB)

Roll call only. Despite representing 14 votes (the largest single bloc), contributed nothing to the substantive debate. The SNB's abstention reflects this disengagement from the core issue.

3. Intervenant 12 (SNB)

Roll call responses and a brief "Merci." No engagement with the substantive matter despite holding voting rights within the SNB bloc.

4. Intervenant_INCONNU_1 (Outgoing Chair)

Present only for the opening announcement. Absence from the substantive session was by design (paternity leave transition), but the result is zero contribution to the debate.

7. VOTE OUTCOME & CSE COMPLIANCE OBSERVATIONS

Formal vote result and compliance flags arising from the session

Formal Vote Result — Article L1226-2 Labour Code Consultation

Union Bloc	Votes	Position
SNB	14	Abstention
CGT	Not specified individually	Unfavourable
CFDT (referred to as "CVT" in transcript — <i>sens_incertain</i>)	Not specified individually	Unfavourable

Note: The transcript records "CGT et CVT" as voting unfavourably. "CVT" is likely a transcription error for "CFDT" — flagged as *sens_incertain*. The individual vote counts for CGT and CFDT blocs are not specified in the transcript. The total favourable votes: 0. No favourable votes were recorded.

Compliance Observations Arising from Speaker Analysis

- **Reclassification documentation gap:** Management (Intervenant 4) acknowledged it could not provide post-by-post justification for exclusions from the job board. This is a compliance risk under Article L1226-2 of the Labour Code, which requires the employer to demonstrate serious and loyal reclassification efforts.
- **Chintigang post (gestionnaire back-office):** Intervenant 6 named a specific available post for which management had no justification for exclusion. This admission ("I do not have the answer") is the most significant compliance vulnerability identified in the session.
- **Causal link not investigated:** Intervenant 5 raised the question of whether the working conditions at CBS Montpellier contributed to the unfitness. Management confirmed the sick leave was ordinary (not AT/MP) but did not address the underlying concern. This point may be relevant to any subsequent legal challenge.
- **Training obligation:** Intervenant 5 raised the employer's training obligation. Management's response (low seniority, incomplete skills development) is a legally defensible position but was not supported by documentary evidence in the session.
- **SNB abstention (14 votes):** The largest single voting bloc abstained without any substantive debate contribution. This represents a missed opportunity for the SNB to influence the outcome and raises questions about the bloc's engagement with employee welfare matters.

- **Procedural sequence confirmed:** Intervenant 8's question confirmed that no formal post offer was made to M. Klein before the CSE consultation — consistent with the legal procedure but noted for the record.

8. STRATEGIC OBSERVATIONS FOR ORGANISATIONAL PROGRESS

Observations derived from speaker behaviour patterns — for management and elected member consideration

Observation	Speaker(s) Concerned	Implication for Progress
Management presented the case without post-by-post documentation	Intervenant 4	Future reclassification procedures should include a documented exclusion rationale for each available post reviewed. This would strengthen the management position and reduce legal exposure.
Elected members demonstrated pre-session preparation (job board research, BDS document review)	Intervenant 6, Intervenant 17	Management should anticipate that elected members will cross-reference job board data. Proactive disclosure of the reclassification search methodology would reduce adversarial dynamics and build trust.
SNB (14 votes) abstained without substantive debate contribution	Intervenant 11, Intervenant 12	The SNB's disengagement from the substantive debate weakens the quality of social dialogue. Encouraging all blocs to engage substantively would produce more balanced and legally robust CSE opinions.

Observation	Speaker(s) Concerned	Implication for Progress
Causal link between working conditions and unfitness was raised but not addressed	Intervenant 5	A proactive SSCT investigation into the working conditions at CBS Montpellier would demonstrate good faith and may prevent future occupational illness declarations or litigation.
Interim leadership transition announced mid-session	Intervenant_INCONNU_1	Leadership continuity in CSE management is critical. The interim arrangement should be formalised and communicated to all elected members to ensure procedural legitimacy of subsequent sessions.
Unfavourable vote from CGT and CFDT signals systemic concern beyond this individual case	Intervenant 5, Intervenant 6, Intervenant 8	The unfavourable vote reflects a broader concern about the adequacy of reclassification processes. A structured review of the reclassification methodology, with elected member input, would address this systemic concern and improve future outcomes.

9. SPEAKER SUMMARY SCORECARD

Consolidated ranking across all dimensions analysed

Rank	Speaker	Contribution Volume	Engagement Quality	Decision Power	Session Impact	Overall
1	Intervenant 4	?????	?????	?????	?????	19/20
2	Intervenant 6	?????	?????	?????	?????	17/20
3	Intervenant 5	?????	?????	?????	?????	15/20
4	Intervenant 17	?????	?????	?????	?????	12/20

Rank	Speaker	Contribution Volume	Engagement Quality	Decision Power	Session Impact	Overall
5	Intervenant 8	?????	?????	?????	?????	9/20
6	Intervenant_INCONNU_1	?????	?????	?????	?????	5/20
7	Intervenant 11	?????	?????	?????	?????	4/20
8	Intervenant 12	?????	?????	?????	?????	4/20
9	Intervenant 1	?????	?????	?????	?????	2/20

Scoring methodology: Each dimension rated 1–5 based on transcript evidence. Maximum score: 20. Scores reflect session contribution only, not overall professional competence.

EVIDENCE & METHODOLOGY DISCLAIMER

This report is based exclusively on the meeting transcript provided. Speaker identifiers follow the transcript labelling. Role attributions are inferred from context and are not confirmed by external documentation. The term "CVT" appearing in the vote result is flagged as *sens_incertain* — likely a transcription error for "CFDT." No attendee names, vote counts, or compliance conclusions have been invented or extrapolated beyond the transcript evidence. Individual vote counts for CGT and CFDT blocs were not specified in the transcript and are therefore not reported. This report does not constitute legal advice.

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